

HOUSE No. 3728

The Commonwealth of Massachusetts

PRESENTED BY:

David Paul Linsky

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to clarify penalties for violations occurring while driving with a hardship license.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>1/15/2025</i>

HOUSE No. 3728

By Representative Linsky of Natick, a petition (accompanied by bill, House, No. 3728) of David Paul Linsky relative to clarifying violations that occur while driving with a hardship license. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3369 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to clarify penalties for violations occurring while driving with a hardship license.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 23 of Chapter 90 of the 2018 General Laws, as amended by section 67, is hereby
2 amended in paragraph two by inserting, after the words “(1) of section twenty-four,” the
3 following:-

4 “pursuant to paragraph (f)(1) of subdivision (1) of section twenty-four,”;

5 and in the same paragraph by inserting, after the words “section eight A or section eight
6 B of chapter ninety B, or pursuant to a violation of section 8, 9 or 11 of chapter ninety F,” the
7 following:-

8 “ or pursuant to a similar or like statute of another jurisdiction,” ;

and in the same paragraph by inserting, after the words “right to operate or the issuance to him of a new license to operate,” the following:-

“or whoever operates a motor vehicle in violation of the terms of a hardship license granted pursuant to M.G.L. Chapters 90, 90A or 90B,” ;

and in paragraph four by inserting, after the words “pursuant to paragraph (a) of subdivision (1) of sections 24, sections 24G or 24L, subsection (a) of section 8 of chapter 90B, sections 8A or 8B of chapter 90B or section 13 ½ of chapter 265 ,” the following:-

“or pursuant to a similar or like statute of another jurisdiction, or whoever operates a motor vehicle in violation of paragraph (a) of subdivision (1) of section 24, sections 24G or 24L, subsection (a) of section 8 of chapter 90B, sections 8A or 8B of chapter 90B or section 13 ½ of chapter 265 , where such operation was pursuant to a hardship license granted pursuant to M.G.L. Chapters 90, 90A or 90B or where such operation was outside the terms of such hardship license,